

Johnathan Pankey,

--X

: Index Number:
Date Purchased:
: Date Filed:

Plaintiff

: SUMMONS

-against-

:

City of New York, New York City Police Department,
Police Officer Tessa Piteo, Tax Reg # 965418 of the 113
Precinct, Sergeant Daniel Barreto, Tax Reg # 939904 of
the 113 Precinct and New York City Police Officers John
Doe,

:

:

:

Plaintiff's residence is:
103 Laurel Street
Roslyn Heights, NY 11577

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:

Defendants

$$-X$$

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the incident occurred in Queens County.

Dated: July 14, 2024
Bronx, NY

Yours, etc.,

Jason Steinberger

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(718) 585-2833

To: City of New York

New York City Police Department

Police Officer Tessa Piteo, Tax Reg # 965418 of the 113 Precinct

Sergeant Daniel Barreto, Tax Reg # 939904 of the 113 Precinct

New York City Police Officers John Doe,

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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Johnathan Pankey	:	
	:	
Plaintiff,	:	
	:	
	:	VERIFIED COMPLAINT
-against-	:	
	:	
City of New York, New York City Police Department,	:	
Police Officer Tessa Piteo, Tax Reg # 965418 of the 113	:	
Precinct, Sergeant Daniel Barreto, Tax Reg # 939904 of	:	
the 113 Precinct and New York City Police Officers John	:	
Doe,	:	
	:	
Defendants.	:	
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Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Johnathan Pankey, (hereinafter referred to as "PANKEY") resides in New York County, State of New York.
2. That at all times hereinafter mentioned, Police Officer Tesa Piteo, Tax Reg # 965418 of the 113 Precinct, (hereinafter referred to as "PITEO") was employed by the New York City Police Department.
3. That at all times hereinafter mentioned, Sergeant Daniel Barretto, Tax Reg # 939904, (hereinafter referred to as "BARRETO") was employed by the New York City Police Department.

4. New York City Police Officers John Doe, those officers involved in the arrest of PANKEY, (hereinafter referred to as “DOES) were employed by the New York City Police Department.
5. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.
6. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.
7. On or about December 15, 2024 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs’ claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.
8. On or about February 1, 2024 a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiffs testified and set forth the facts underlying Plaintiffs’ claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.
9. That on or about September 24, 2023 at approximately 12:00 AM in the vicinity of Brewer Boulevard and 119 Drive, Queens NY, Plaintiff was inside of a car that was stopped for no lawful reason by PITEO and BARRETO.
10. That PITEO and BARRETO ordered Plaintiff to exit the car for no lawful reason whereupon he was handcuffed and arrested.
11. That at no time had Plaintiff been engaged in any illegal or unlawful activity.

12. That at no time did Plaintiff make a terroristic threat toward any police officer.
13. That at no time did Plaintiff obstruct any governmental administration.
14. That at no time did Plaintiff make harass or threaten any police officer.
15. That after Plaintiff was arrested he was transported to the 113 precinct.
16. That when Plaintiff was removed to the 113 precinct he was subjected to a strip search and that nothing of an illegal nature was recovered.
17. That while at the 113 precinct, he was placed into a cell with other males for several hours.
18. That after several hours of being held in a cell at the 113 precinct, Plaintiff was removed to Queens County Central Booking located at 125-01 Queens Boulevard, Queens, NY.
19. That while at Queens County Central Booking, Plaintiff was held in a cell with other males for several hours.
20. That on or about September 25, 2023 Plaintiff was arraigned on docket CR-027985-23QN wherein he was charged with Making a Terroristic Threat, Obstructing Governmental Administration and Harassment in the Second Degree and related charges.
21. At the time of Plaintiff's arraignment, his case adjourned and he was released on his own recognizance.
22. That on and between September 25, 2023 and November 27, 2023, Plaintiff made numerous court appearances until the case was dismissed on May 26, 2024.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST THE CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

23. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 22, as if more fully stated herein at length.

24. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

25. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

26. That as a result of the actions by Defendants, Plaintiff was traumatized and fears for his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

27. That as a result of the Defendants' actions, Plaintiff has been unable to sleep.

28. That as a result of the Defendants' actions, Plaintiff was forced to miss multiple days of work.

29. That as a result of the Defendants' actions, Plaintiff was forced to miss multiple days of school.

30. That as a result of the Defendants' actions Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

31. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 30, as if more fully stated herein at length.

32. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

33. Defendants having no lawful authority to arrest Plaintiff, did, nevertheless, unlawfully arrest Plaintiff with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS

34. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 33, as if more fully stated herein at length.

35. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

36. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 35, as if more fully stated herein at length.

37. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

38. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested.

Plaintiff is thus entitled to compensatory and exemplary damages.

39. That prior to the time of arrest, after the arrest and during the pendency of the criminal case against Plaintiff, PITEO, BARRETO and DOES persisted in their false claim that Plaintiff made terroristic threats, obstructed governmental administration and harassed them despite knowing that he did not. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

40. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 39, as if more fully stated herein at length.

41. At all times pertinent hereto, PITEO, BARRETO and DOES were acting within the scope of her employment as officers of the New York City Police Department and City of New York.

42. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that PITEO, BARRETO and DOES committed within the scope of her employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

43. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 42, as if more fully stated herein at length.

44. The City of New York and New York City Police Department's failure to provide adequate training and supervision to PITEO, BARRETO and DOES constitutes a willful and

wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

45. The City of New York and New York City Police Department maintained a policy of arresting people and claiming that they possessed controlled substances when in fact they did not.

46. The City of New York and New York City Police Department maintained a policy of not disciplining or terminating police officers who engaged in claiming that people possessed controlled substances when they did in fact not.

47. The City of New York and New York Police Department were aware that PITEO had three (3) Civilian Complaint Review Board complaints against her. Despite such, the City of New York continued to employ PITEO.

48. The City of New York and New York Police Department were aware that BARRETO had thirty seven (37) Civilian Complaint Review Board complaints against him, two (2) of which were substantiated. Despite such, the City of New York continued to employ BARRETO.

49. The City of New York and New York Police Department were aware that BARRETO was named as a defendant in lawsuit for false arrest and civil rights violations under caption Rafael Arden Jones v. City of New York, et al, index number 16CV00556, United States District Court, Southern District Court. Despite such, the City of New York continued to employ BARRETO.

50. The City of New York and New York Police Department were aware that BARRETO was named in as a defendant in lawsuit for false arrest and civil rights violations under caption Tyquan Myrick v. City of New York et al, index number 13CV02544, United States District Court, Eastern District. Despite such, the City of New York continued to employ BARRETO.

51. The City of New York and New York Police Department were aware that BARRETO was named in as a defendant in lawsuit for false arrest and civil rights violations under caption Hakeem Williams v. City of New York et al, index number 13CV02544, United States District Court, Eastern District. Despite such, the City of New York continued to employ BARRETO.

52. The City of New York and New York Police Department were aware that BARRETO was named in as a defendant in lawsuit for false arrest and civil rights violations under caption Clinton Campbell v. City of New York et al, index number 12CV00173, United States District Court, Eastern District. Despite such, the City of New York continued to employ BARRETO.

53. The City of New York and New York Police Department were aware that BARRETO was named in as a defendant in lawsuit for false arrest and civil rights violations under caption Wilson v. City of New York et al, index number 10CV04206, United States District Court, Eastern District. Despite such, the City of New York continued to employ BARRETO.

54. The City of New York and New York Police Department were aware that BARRETO was named in as a defendant in lawsuit for false arrest and civil rights violations under caption Johnson et al v. City of New York et al, index number 003571/2012, New York State Supreme Court, Kings County. Despite such, the City of New York continued to employ BARRETO.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

55. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 54, as if more fully stated herein at length.

56. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

57. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

Jason Steinberger
Jason A. Steinberger, Esq.
Attorney for Plaintiffs
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(718) 585-2833

STATE OF NEW YORK: COUNTY OF BRONX

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: July 14, 2024

Jason Steinberger _____
Jason A. Steinberger